No. 25-0792

IN THE SUPREME COURT OF TEXAS

State of Texas, Petitioner

v.

F.M.V., a Juvenile, Respondent

PETITION FOR REVIEW

Lead Counsel Name
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Introduction

The petition asks the Court to review the court of appeals' construction of the statutory safeguards governing a juvenile's statement. The question affects the uniform administration of the Family Code and warrants review under Texas Rule of Appellate Procedure 56.1.

Identity of Parties and Counsel

The parties to the judgment below are the State of Texas and F.M.V., a Juvenile. Lead counsel is listed on the cover. Counsel for the parties should provide all additional counsel and contact information required by Rule 53.2(b).

Table of Contents

The introduction, statement of the case, statement of jurisdiction, issues presented, statement of facts, summary, argument, and prayer follow in that order. In a filed PDF, this table should include page references and bookmarks.

Index of Authorities

Authorities should be listed alphabetically with the pages on which they are cited.

Statement of the Case

This is a juvenile proceeding arising in the 65th District Court of El Paso County, Texas. The court of appeals reversed and remanded. No motion for rehearing is pending.

Statement of Jurisdiction

The Supreme Court has jurisdiction under Texas Government Code section 22.001.

Issues Presented

Whether the statutory requirement that a magistrate act outside law enforcement's physical presence is satisfied by a neutral examination conducted in a separate room.

Statement of Facts

The petition must state the pertinent facts and procedural history concisely, without argument, and with citations to the record. It must affirm the court of appeals correctly stated the nature of the case except for particulars identified here.

Summary of the Argument

The petition presents a recurring question of statutory interpretation. The text and structure support review of the court of appeals' rule, and the record shows why the issue matters to the disposition.

Argument

The Court should grant review because the decision conflicts with the statutory framework and affects important questions of state law. The petition should explain preservation, apply the factors in Rule 56.1(a), and support each contention with authority and record references.

Prayer

Petitioner respectfully requests that the Court grant the petition for review and award appropriate relief.